

The Merchant Shipping (Seamen's Levy of Fees) Rules, 1974

Source: <https://indiankanoon.org/doc/60802315/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

0

]

Union of India - Act

The Merchant Shipping (Seamen's Levy of Fees) Rules, 1974

UNION OF INDIA

India

The Merchant Shipping (Seamen's Levy of Fees) Rules, 1974

Rule THE-MERCHANT-SHIPPIING-SEAMEN-S-LEVY-OF-FEES-RULES-1974 of 1974

Published on 15 July 1974

Commenced on 15 July 1974

[This is the version of this document from 15 July 1974.]

[Note: The original publication document is not available and this content could not be verified.]

The Merchant Shipping (Seamen's Levy of Fees) Rules, 1974

Published vide Notification Gazette of India, 1974, Part 2, Section 3(i) page 1922.

1784.

G.S.R. 807, dated 15th July, 1974. - In exercise of the powers conferred by clauses (d) and (e) of sub section (2) of section 218 and by section 457 of the Merchant Shipping Act, 1958 (

44 of 1958

) and of all other powers hereunto enabling, the Central Government hereby makes the following rules, namely-

1.

Short title and application.

(1)

These rules may be called the Merchant Shipping (Levy of Seamen's Welfare Fee) Rules, 1974.

(2)

They shall come into force from the date of their publication in the official Gazettee i.e. 27th July, 1974.

(3)

The shall apply to every ship engaging any seaman under section 100 and section 114 of the Act.

2.

Definition.

- In these rules, unless the context otherwise requires :-

(a)

"Act" means the Merchant Shipping Act, 1958 (

44 of 1958

).

(b)

"Proper officer" means the Shipping Master, Bombay or any other officer so appointed by the Central Government by a notification published in the official Gazette;

(c)

"Schedule" means Schedule to these rules;

(d)

"Seafarers Welfare Fund Society" means the society registered under the Societies Registration Act, 1860, (21 of 1860);

(e)

"Shipping master" includes an office-in-charge of the office specified by a notification under sub-section (3) of section II of the Act for conducting the whole or any part of the business of the shipping office; and

(f)

"Year" means a financial year commencing from the first day of April in each year.

3.

Levy and collection of Seamen's Welfare fees.

(1)

There shall be levied and collected on each seaman engaged under section 100 or under section 114 of the Act, a fee at the rate of [twenty five rupees]

[Substituted by G.S.R. 221(E), dated 27th March, 1981]

per year (hereinafter referred to as annual fee) for the purpose of providing amenities to seamen and for the welfare of seamen.

(2)

The annual fee shall be payable to the proper officer by the master, owner or agent of a ship and it shall be payable on every seaman held in engagement by the master, owner or agent of such ship on the commencement of each year:

Provided that in the year of commencement of those rules the annual fee shall be payable on every seaman held in engagement by the master, owner or agent of a ship on the commencement of these rules.

(3)

The annual fee shall become payable from the first day of the year and shall be paid not later than the thirty-first day of May of that year:

Provided that in the year of commencement of these rules the annual fee shall be paid within sixty days from the commencement of these rules.

(4)

The annual fee shall be paid by the master, owner or agent of a ship to the proper officer by cheque crossed account payee in favour of the proper officer who shall deposit the same within seven days through challan into the treasury for credit to the revenue receipt head XI Mercantile Marine "Seamen's Welfare Fee."

(5)

For every payment of annual fee received by the proper officer there shall be issued a receipt in the form specified in Schedule I.

(6)

Every master, owner or agent of a ship shall, on the request of the proper officer, furnish such information as are necessary for the proper implementation of these rules.

(7)

Notwithstanding anything contained in sub-rule (1), in the year of commencement of these rules, the annual fee payable under these rules shall be rupees five per seaman irrespective of the commencement of those rules.

4.

Voluntary contributions.

- Any funds collected, prior to the date of commencement of these rules, from masters, owners or agents of ships as a result of any collective agreement between such masters, owners or agents and the National Welfare Board for Seafarers or as a result of any voluntary contribution made by such masters, owners or agents for the purposes of welfare of seafarers in their employ, shall, on commencement of these rules, be brought on the books of the proper officer and be disbursed in the like manner as if they were collected under the provisions of rule 3.

5.

Security for payment of annual fee in respect of Seamen engaged on ships other than Indian ships.

(1)

The master, owner or agent of a ship other than an Indian ship shall give to the proper officer a bond with the security from an approved person resident in India for such amount as may be fixed by the proper officer and every such bond shall be conditioned for the full payment of the annual fee due from the master, owner or agent of the ship, with expenses, if any, incurred in the recovery of the annual fee:

Provided that the proper officer shall waive the requirement of this sub-rule in respect of owners of ships who employ seamen from India and have a Company Roster of their own.

(2)

Any bond executed by the master or owner of other than an Indian ship under sub-section (3) of section 14 or any security given by the agent of any such ship under the proviso to that sub-section may be deemed to be a sufficient bond or, as the case may be, a security for the purpose of sub-rule (1):

Provided that any existing bond furnished under sub-section (3) of section 14 of the Act shall be deemed to be a bond under this rule.

(3)

Where any bond or security referred to in sub-rule (2) is given to any shipping master who is not appointed as a proper officer under these rules, he shall transmit necessary particulars of the said bond or security to the proper officer as soon after any such bond is executed or, as the case may be, security is accepted.

(4)

Any bond executed or security given under this rule shall be enforceable by any competent court in the same manner as if they had been given to it.

(5)

Where any bond or security is enforced by a competent court, the court may decide as to the costs of the proceedings and the person from whom and the extent to which such costs shall be recovered and treated as expenses under these rules.

6.

Determination of disputes as to the liability for payment.

- If any dispute arises as to the amounts due for payment under these rules in respect of any ship or as to the liability for payment of such amounts, [the dispute shall, on an application made by either of the disputing parties, be decided by the Director-General after giving a hearing to the opposite party, and his decision shall be binding on both the parties.]

[Substituted by G.S.R. 588, dated 23rd June, 1982]

7.

Refusal for port clearance.

(1)

Where any master, owner or agent of a ship fails to make payment of annual fee due from him within the time fixed under rule 3, the proper officer shall serve a notice on the master, owner or agent of the ship concerned calling upon him to pay the fee within thirty days from the date of such notice, where after he may communicate the particulars of the defaulter to the Collector of Customs who shall not grant port clearance of the ship until the amount of annual fee due in respect of that ship, including the expenses of collecting such a fee have been paid or until adequate security for payment thereof under rule 5 has been furnished to his satisfaction.

(2)

If any ship in respect of which annual fee is payable at any port leaves such port without the amount referred to in sub-rule (1) having been paid, the Collector of Customs may by writing require the Collector of Customs at any other port to which the ship may proceed, or in which she may be, to recover the said amount.

(3)

Any Collector of Customs to whom a requisition is sent under sub-rule (2) shall proceed to recover the said amounts as if it were payable under these rules at the port at which he is the Customs Collector and the Certificate of the Collector of Customs at the port at which the said amount became payable, stating that amount payable shall be sufficient proof in any proceedings under these rules that such amount is payable.

(4)

The Collector of Customs shall, on recovery of the amount referred to in sub-rule (3), issue to the person paying the same a receipt in the form specified in Schedule I and shall forward the same together with the other papers, if any, to the proper officer through the Collector of Customs at the port at which the said amount became payable.

8.

Receipts and Expenditure.

(1)

The amount of annual fee collected under these rules shall be credited to the Consolidated Fund of India under the revenue receipt head XI Mercantile Marine "Seamen's Welfare Fee".

(2)

The Central Government may determine the cost of collection of the annual fees for every year and after deducting such costs from the gross collection referred to in sub-rule (1), the net proceeds shall be paid to the Seafarers Welfare Fund Society after due appropriation by the Parliament.

(3)

All payments made under sub-rule (2) shall be debited to the expenditure head 54 "Mercantile Marine" Contributions/Payments on account of "Seamen's Welfare Fee".

9.

Refund of excess payments.

(1)

Where annual fee paid by the master, owner or agent of ship is in excess of the amount due from him under these rules, the excess amount shall be refunded if claim there for is preferred before expiry of twenty-four months from the date of payment. No such claim shall be entertained if it is preferred after expiry of twenty four months from the date of payment.

(2)

Any refund made under sub-rule (1) shall be adjusted under the Head "XI" Mercantile Marine Deduct Refunds.

[Provided that the competent authority may, for reasons to be recorded in writing extend such period by a further period upto twelve months.]

[Substituted by G.S.R. 588, dated 23rd June, 1982]

10.

Penalties.

- Any person who contravenes any provision of these rules or fails to comply with any provision thereof shall be guilty of an offence and shall be punishable with fine which may extend to one thousand rupees and when the breach is a continuing one with a further fine which may extend to fifty rupees for every day after the first during which the breach continues. -

I

Form Of Receipt

[Rules 3(5) and 7(4)]

1. Port at which Seamen's Welfare Fee has been paid.

2. Port at which seamen are registered.

3. Amount paid :

in words:

in figures Rs.....

4. Date on which amount became payable.
5. Date on which amount was actually paid.
6. (a) Name of the Vessel
- (b)
Tonnage
- (c)
Number of Seamen signed on Articles as members of the Crew.
- (d)
Any other description in respect of payments made.
7. Name and address of the person making payment on behalf of the master.
Owner or agent of the ship.
Signature of the proper Officer
The Collector of Customs
Officer authorised under sub-rule (5) of rule 3 or sub-rule (4) of rule 7.
Date :

II

Proforma Account For The Year

(Rule 10)

- (a)
Seamen's Welfare Fee dues from the owners in respect of
- (i)
Arrears.
- (ii)
Current year.
- (b)
Seamen's Welfare Fee actually collected in respect of
- (i)
Arrears.
- (ii)
Current Year.
- (c)
Securities, if any, held for effecting payment of levy, under rule 5 in respect of
- (i)
Past Payment.
- (ii)
Current Payment.
- (d)
Refund of excess payment under rule-9.
- (e)
Cost of collection as determined by the Central Government.
- (f)
Miscellaneous expenditure, if any.
- (g)
Amount of levy paid to the Seafarers' Welfare Fund Society by Central Government.
Signature of the proper Officer
Officer authorized under sub. rule (2) of rule 3.
Date:
Related AI tags, queries and research notes
Translation